

Unit 5

5

Treaties, Conventions and Agreements Pertaining to Each Type of IPR 2

Syllabus

Treaties, conventions and agreements pertaining to each type of IPR 2 : Trademark Law Treaty, Patent Law Treaty (PLT), Berne Convention, Rome Convention, Geneva Convention, Beijing Treaty, Marrakesh Treaty, TRIPS. Filing procedure of PCT application.

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5.1 Introduction to Treaties, Conventions and Agreements Pertaining to Each Type of IPR 2

- IPRs are rights granted to individuals over their intellectual creations, according to the World Trade Organization. A number of bilateral and multilateral treaties have been made to advance intellectual property law internationally.
- The international intellectual property landscape is governed by a complex array of treaties, conventions, and agreements that provide a framework for protecting and enforcing various types of Intellectual Property Rights (IPRs).
- Important documents like the Convention of Berne, the Rome Convention, Geneva Convention, Beijing Agreement, Marrakesh Agreement, Trademark Law Agreement, Patent Law Treaty (PLT), and the Treaty on Trade-Related Features of Intellectual Property Rights (TRIPS) are all part of this complex network of international agreements.
- These agreements establish common standards and procedures for the protection of trademarks, patents, copyrights, and related rights, facilitating international cooperation and collaboration in the field of intellectual property. Furthermore, the Patent Cooperation Treaty (PCT) provides a streamlined process for filing patent applications globally, and understanding the PCT filing procedure is essential for inventors and businesses seeking to protect their inventions worldwide.
- These agreements play a crucial role in promoting innovation, creativity, and economic growth by establishing common standards and procedures for the protection of IPRs.

5.2 Trademark Law Treaty (TLT)

- The Trademark Law Treaty was established on October 27, 1994, at a Diplomatic Conference in Geneva. Simplifying and standardizing the administrative processes for national applications and mark protection is the aim of the Trademark Law Treaty (TLT). The Treaty may be ratified by individual nations as well as by intergovernmental organizations like the European Union (EU) and the African Intellectual Property Organization (OAPI), who are responsible for maintaining an office for the registration of trademarks. The Model International Forms and Regulations complement the

Treaty's requirements. The substantive aspects of trademark law pertaining to mark registration are not covered by the Treaty. The first day of August 1996 marked the Treaty's effective date. The entire contents of the Trademark Rights Agreement and the Trademark Law Agreement Regulations are included at the conclusion of this Unit as Appendices A and B, respectively.

- The Trademark Law Treaty (TLT) is a significant international treaty that aims to standardize and simplify the procedures for registering trademarks. Signed in 1994, the TLT has 52 member countries, including major economies such as the United States, China, Japan, and the European Union. The treaty provides a framework for the registration and protection of trademarks, facilitating the global protection of brands and trademarks.
- One of the primary objectives of the TLT is to simplify the trademark registration process by reducing the formalities and documentation required. Prior to the TLT, the process of registering trademarks was complex and time-consuming, requiring applicants to comply with different formalities and documentation requirements in each country. The TLT has streamlined this process by establishing a standardized set of requirements for trademark registration, making it easier for businesses to protect their brands globally.
- The TLT also provides a framework for the protection of trademarks, including the rights of trademark owners and the procedures for resolving disputes. The treaty establishes the principle of "first-to-file," which means that the first person to file a trademark application in a particular country has priority over later filers. The TLT also provides for the protection of well-known trademarks, which are trademarks that are widely recognized and respected in a particular country or region.
- The benefits of the TLT are numerous. By simplifying the trademark registration process, the treaty makes it easier for businesses to protect their brands globally. This, in turn, promotes international trade and commerce, as businesses are more likely to export their goods and services if they can protect their trademarks in foreign markets. The TLT also promotes fairness and transparency in the trademark registration process, as it establishes clear and consistent rules for the registration and protection of trademarks.
- Thus, the Trademark Law Treaty (TLT) is an important international treaty that simplifies the trademark registration process and provides a framework for the protection of trademarks. By standardizing the requirements for trademark

registration and establishing clear rules for the protection of trademarks, the TLT promotes international trade and commerce, fairness, and transparency in the trademark registration process.

Regulations and model international forms

- The Regulations, which offer guidelines for specifics helpful in putting the Treaty's obligations on organizational requirements and procedures into practice, complement the Treaty's provisions. The regulations pertain 47 The Patent Law Agreement to the requirements for applications, representation, submission date, signing, duration, renewal, the way of showing names and addresses, and application identification in the absence of an application number. For instance, the regulations specify how many copies of the mark must be included with the application, as well as deadlines for fee payments and other correspondence with the office, including the submission of a power of attorney and an invitation to correct any non-compliance.
- Additionally, there are eight Model International Forms in the Regulations that deal with application filing, renewal requests, recording changes in names, addresses, and ownership, correcting errors, designating representatives, certificates of transfer, and certificates of transfer papers. The office may create a "Individualized International Form" in situations when the request for information is allowed by the treaty but not required by national legislation, such as in relation to an application. There cannot be any required requirements on this form that are in conflict with the Agreement or the Regulations. Applicants and other parties can be sure that no office of a contracting party can reject an application or request on the basis of the Model International Forms or the Customized International Forms.

5.3 Patent Law Treaty (PLT)

- The Patent Law Treaty (PLT) is a significant international treaty that aims to harmonize and simplify the formalities and procedures for patent applications. Signed in 2000, the PLT has 42 member countries, including major economies such as the United States, China, Japan, and the European Union. The treaty provides a framework for the filing and prosecution of patent applications, facilitating the global protection of inventions and promoting innovation and technological progress.

One of the primary objectives of the PLT is to simplify the patent application process by reducing the formalities and documentation required. Prior to the PLT, the process of filing patent applications was complex and time-consuming, requiring applicants to comply with different formalities and documentation requirements in each country. The PLT has streamlined this process by establishing a standardized set of requirements for patent applications, making it easier for inventors and businesses to protect their inventions globally.

The PLT also provides a framework for the prosecution of patent applications, including the procedures for searching, examining, and granting patents. According to the treaty, the first individual to submit an application for patents in a given nation gets precedence over subsequent filers. This is known as the "first-to-file" principle. The PLT also provides for the protection of patent rights, including the rights of patent owners and the procedures for resolving disputes.

The benefits of the PLT are numerous. By simplifying the patent application process, the treaty makes it easier for inventors and businesses to protect their inventions globally. This, in turn, promotes innovation and technological progress, as inventors and businesses are more likely to invest in research and development if they can protect their inventions in foreign markets. The PLT also promotes fairness and transparency in the patent application process, as it establishes clear and consistent rules for the filing and prosecution of patent applications.

In addition, the PLT provides a number of benefits for patent offices, including the ability to share information and best practices, and to harmonize their procedures and practices. This, in turn, promotes efficiency and effectiveness in the patent application process, and helps to reduce the costs and complexities associated with filing patent applications in multiple countries.

So it can be understood that the Patent Law Treaty (PLT) is an important international treaty that simplifies the patent application process and provides a framework for the filing and prosecution of patent applications. By reducing the formalities and documentation required, and by establishing clear and consistent rules for the patent application process, the PLT promotes innovation and technological progress, fairness and transparency, and efficiency and effectiveness in the patent application process.

5.4 Berne Convention

- Increased literacy piracy in the ninth century sparked states' interest in the possibility of international collaboration on intellectual property. In 1886, eight nations - Belgium, France, Germany, Italy, Spain, Switzerland, Tunisia, and the United Kingdom - ratified the Berne convention for the first time. Since April 1928, India has been a part of the Berne convention. Similar to the Paris convention, the Berne convention established a list of fundamental rights that all countries were required to respect and was founded on the concept of national treatment.
- The Berne Convention is a landmark international treaty that provides a framework for the protection of copyrights. Signed in 1886, the Berne Convention has 179 member countries, making it one of the most widely adopted international treaties in the world. The treaty establishes the principle of national treatment, which requires member countries to treat foreign authors and creators in the same way as domestic authors and creators. This means that authors and creators from member countries are entitled to the same level of copyright protection in other member countries as they would receive in their own country.
- The Berne Convention also establishes a minimum standard of protection for copyrights, including the right to reproduce, distribute, and communicate works to the public. This means that member countries must provide a minimum level of protection for copyrights, including the exclusive right to reproduce, distribute, and communicate works to the public. The treaty also provides for the protection of moral rights, which include the right of authors to claim authorship of their works and to object to any distortion, mutilation, or modification of their works.
- One of the key benefits of the Berne Convention is that it provides a high level of protection for copyrights, which is essential for promoting creativity and innovation. By providing a minimum standard of protection for copyrights, the treaty ensures that authors and creators are able to control the use of their works and to receive fair compensation for their creative efforts. This, in turn, promotes the creation of new works and the dissemination of knowledge and culture.

- The Berne Convention also provides a framework for international cooperation and collaboration in the field of copyright protection. The treaty establishes the Berne Union, which is responsible for promoting the protection of copyrights and for providing a forum for member countries to discuss issues related to copyright protection. The Berne Union also provides technical assistance and support to member countries to help them implement the provisions of the treaty.

In addition, the Berne Convention has undergone several revisions and updates since its adoption in 1886. The most recent revision was made in 1971, which updated the treaty to reflect changes in technology and the global economy. The treaty has also been supplemented by several additional agreements, including the WIPO Copyright Treaty and the WIPO Performances and Phonograms Treaty, which provide additional protection for copyrights in the digital environment.

To sum up, the Berne Convention is a foundational international treaty that provides a framework for the protection of copyrights. By establishing the principle of national treatment and a minimum standard of protection for copyrights, the treaty promotes the creation of new works and the dissemination of knowledge and culture. The treaty also provides a framework for international cooperation and collaboration in the field of copyright protection, and has undergone several revisions and updates to reflect changes in technology and the global economy.

5.5 Rome Convention

- The Rome Convention was the first international agreement to recognize three adjacent rights: The rights of the phonogram technique, the right of a wide casting organization, and the rights of performers.
- The Rome Convention is a significant international treaty that provides a framework for the protection of performers, producers of phonograms, and broadcasting organizations. Signed in 1961, the Rome Convention has 92 member countries, making it one of the most widely adopted international treaties in the field of intellectual property. The treaty establishes the principle of national treatment, which requires member countries to treat foreign performers, producers, and broadcasting organizations in the same way as domestic performers, producers, and broadcasting organizations.

- The Rome Convention provides a framework for the protection of performers' rights, including the right to control the use of their performances, the right to receive compensation for the use of their performances, and the right to protect their moral rights. The treaty also provides for the protection of producers of phonograms, including the right to control the reproduction and distribution of their phonograms, and the right to receive compensation for the use of their phonograms. Additionally, the treaty provides for the protection of broadcasting organizations, including the right to control the rebroadcasting of their broadcasts, and the right to receive compensation for the use of their broadcasts.
- One of the key benefits of the Rome Convention is that it provides a high level of protection for performers, producers of phonograms, and broadcasting organizations. By establishing the principle of national treatment, the treaty ensures that these rights holders are treated equally in all member countries, regardless of their nationality. This, in turn, promotes the creation and dissemination of cultural and artistic works, and ensures that rights holders are fairly compensated for their creative efforts.
- The Rome Convention also provides a framework for international cooperation and collaboration in the field of intellectual property. The treaty establishes the International Bureau of the World Intellectual Property Organization (WIPO) as the depositary of the treaty, and provides for the exchange of information and best practices among member countries. This cooperation and collaboration facilitate the effective implementation of the treaty and promote the protection of intellectual property rights worldwide.
- In addition, the Rome Convention has undergone several revisions and updates since its adoption in 1961. The most significant revision was made in 1996, which updated the treaty to reflect changes in technology and the global economy. The treaty has also been supplemented by several additional agreements, including the WIPO Performances and Phonograms Treaty, which provides additional protection for performers and producers of phonograms in the digital environment.
- In conclusion, the Rome Convention is a significant international treaty that provides a framework for the protection of performers, producers of phonograms,

and broadcasting organizations. By establishing the principle of national treatment and providing a high level of protection for these rights holders, the treaty promotes the creation and dissemination of cultural and artistic works, and ensures that rights holders are fairly compensated for their creative efforts. The treaty also provides a framework for international cooperation and collaboration in the field of intellectual property, and has undergone several revisions and updates to reflect changes in technology and the global economy.

5.6 Geneva Convention

- The Geneva Convention is a significant international treaty that provides a framework for the protection of phonograms, which are sound recordings that fix sounds or sounds and images. Signed in 1971, the Geneva Convention has 78 member countries, making it a widely adopted international treaty in the field of intellectual property. The treaty establishes the principle of national treatment, which requires member countries to treat foreign phonogram producers in the same way as domestic phonogram producers.
- The Geneva Convention provides a framework for the protection of phonogram producers' rights, including the right to control the reproduction, distribution, and communication to the public of their phonograms. The treaty also provides for the protection of phonogram producers' moral rights, including the right to claim authorship of their phonograms and to object to any distortion, mutilation, or modification of their phonograms. Additionally, the treaty provides for the protection of phonogram producers' neighboring rights, which include the right to control the use of their phonograms in broadcasts, public performances, and other forms of exploitation.
- One of the key benefits of the Geneva Convention is that it provides a high level of protection for phonogram producers' rights. By establishing the principle of national treatment, the treaty ensures that phonogram producers are treated equally in all member countries, regardless of their nationality. This, in turn, promotes the creation and dissemination of sound recordings, and ensures that phonogram producers are fairly compensated for their creative efforts.
- The Geneva Convention also provides a framework for international cooperation and collaboration in the field of intellectual property. The treaty establishes the

International Bureau of the World Intellectual Property Organization (WIPO) as the depositary of the treaty, and provides for the exchange of information and best practices among member countries. This cooperation and collaboration facilitate the effective implementation of the treaty and promote the protection of intellectual property rights worldwide.

- In addition, the Geneva Convention has undergone several revisions and updates since its adoption in 1971. The most significant revision was made in 1996, which updated the treaty to reflect changes in technology and the global economy. The treaty has also been supplemented by several additional agreements, including the WIPO Performances and Phonograms Treaty, which provides additional protection for phonogram producers in the digital environment.

5.7 Beijing Treaty

- The Beijing Treaty is a significant international treaty that provides a framework for the protection of audiovisual performances. Signed in 2012, the Beijing Treaty has 32 member countries, and its adoption marks a major milestone in the development of international intellectual property law. The treaty establishes the principle of national treatment, which requires member countries to treat foreign performers in the same way as domestic performers. This means that foreign performers will enjoy the same level of protection and rights as domestic performers in each member country.
- The Beijing Treaty provides a framework for the protection of audiovisual performances, which include performances fixed in audiovisual media, such as films, television programs, and other forms of audiovisual content. The treaty grants performers economic rights, including the right to control the use of their performances, the right to receive compensation for the use of their performances, and the right to protect their moral rights. The treaty also provides for the protection of performers' neighboring rights, which include the right to control the use of their performances in broadcasts, public performances, and other forms of exploitation.
- One of the key benefits of the Beijing Treaty is that it provides a high level of protection for audiovisual performers' rights. By establishing the principle of national treatment, the treaty ensures that foreign performers are treated equally in

all member countries, regardless of their nationality. This, in turn, promotes the creation and dissemination of audiovisual content, and ensures that performers are fairly compensated for their creative efforts.

- The Beijing Treaty also provides a framework for international cooperation and collaboration in the field of intellectual property. The treaty establishes the International Bureau of the World Intellectual Property Organization (WIPO) as the depositary of the treaty, and provides for the exchange of information and best practices among member countries. This cooperation and collaboration facilitate the effective implementation of the treaty and promote the protection of intellectual property rights worldwide.

- In addition, the Beijing Treaty is a significant step forward in the development of international intellectual property law. The treaty builds on the foundations established by earlier treaties, such as the Rome Convention and the WIPO Performances and Phonograms Treaty, and provides a more comprehensive and up-to-date framework for the protection of audiovisual performances. The treaty also reflects the changing needs of the audiovisual industry, including the growth of digital technologies and the increasing importance of international co-operation and collaboration.

- I. The rights of reproduction
- II. Distribution,
- III. Renting rights and
- IV. The right of making available.

- The right of reproduction is the ability to freely reproduce a performance fixed in an audiovisual fixation in any way. The right of distribution is the ability to freely make both the original and replicas of the performance fixed in an audiovisual fixation available to the public through sale or other ownership transfer. The right of rental is the ability to freely rent the unique and copies of the performance fixed in a multimedia fixation to the public for commercial purposes.
- The right of making available refers to the authority to permit the public to access any performance that is fixed in an audiovisual fixation via wired or wireless means,

so that the public can view the fixed performance from a location and at a time of their own choosing. This right specifically includes interactive, on-demand content made available online. The Treaty gives performers three different types of economic rights with regard to unscheduled (live) performances :

- i) The ability to broadcast, with the exception of rebroadcasting;
- ii) The public communication right (except than in cases where the performance is broadcast); and
- iii) The fixation right.

- The treaty also gives performers moral rights, which include the right to identify themselves as the performer (unless the way the performance is used dictates otherwise) and the right to object to any mutilation, distortion, or other modification that would harm their reputation, taking into consideration the nature of the audio-visual fixations.

- In conclusion, the Beijing Treaty is a significant international treaty that provides a framework for the protection of audiovisual performances. By establishing the principle of national treatment and providing a high level of protection for performers' rights, the treaty promotes the creation and dissemination of audiovisual content, and ensures that performers are fairly compensated for their creative efforts. The treaty also provides a framework for international cooperation and collaboration in the field of intellectual property, and is a significant step forward in the development of international intellectual property law.

5.8 Marrakesh Treaty

- Fundamental ideas of the Marrakesh Treaty an international agreement known as the Agreement of Marrakesh aimed at facilitating being able to get to released works for individuals who was blind or visually deficient, or alternatively printing disabled (Marrakesh Agreement, MT, or Treaty) aims to remove the obstacles that copyright law places in the way of print-disabled people's access to books and other artistic works. The MT accomplishes this goal by mandating that states implement copyright exceptions and restrictions that permit the production and dissemination of usable format copies, including internationally. Through the use of copyright law and policy, the Marrakesh Treaty aims to promote human rights.

- The MT helps to fulfill the commitment made by contracting states in Article 30(3) of the CRPD to "ensure that laws safeguarding intellectual property rights do not constitute an unreasonable or discriminatory barrier to access by persons who are disabled to cultural materials." The MT's preamble highlights the overlap between these two legal fields by recalling "the fundamentals of non-discrimination, equal opportunities, being accessible and full and efficient engagement and inclusion in society, declared in the UN's Universal Declaration of Human Rights and the United Nations Convention on the Rights of Persons with Disabilities" (CRPD) and acknowledging "the need to maintain a balance between the effective protection of rights of authors and the larger public interest."

- Because of the MT's unique combination of intellectual property and human rights, the legal requirements and tenets of both domains must be considered while interpreting and implementing the treaty. This Guide provides a thorough approach to these problems. In a variety of local contexts, it offers policy alternatives and pragmatic considerations to support the successful achievement of the MT's goals. A brief overview of the worldwide intellectual property and human rights frameworks, with a focus on copyright, is given in Section 1.1 of the Guide before discussing these recommendations. Next, Section 1.2 describes how the MT's human rights goals guide the interpretation of Treaty 32 in accordance with established public international law norms.

- The Marrakesh Treaty is a groundbreaking international treaty that provides a framework for the protection of visually impaired persons and persons with print disabilities. Signed in 2013, the Marrakesh Treaty has 91 member countries, making it one of the most widely adopted international treaties in the field of intellectual property. The treaty establishes the principle of national treatment, which requires member countries to treat visually impaired persons and persons with print disabilities in the same way as domestic persons, ensuring that they have equal access to copyrighted materials.

- The Marrakesh Treaty aims to facilitate access to published works for visually impaired persons and persons with print disabilities, who often face significant barriers in accessing copyrighted materials. The treaty allows for the creation and

distribution of accessible format copies of copyrighted works, such as Braille, large print, and digital formats, without the need to obtain permission from the copyright holder. This provision enables organizations and individuals to produce and distribute accessible format copies of copyrighted works, thereby increasing the availability of accessible materials for visually impaired persons and persons with print disabilities.

- One of the key benefits of the Marrakesh Treaty is that it promotes equal access to information and knowledge for visually impaired persons and persons with print disabilities. By allowing for the creation and distribution of accessible format copies of copyrighted works, the treaty helps to bridge the gap in access to information and knowledge that exists between visually impaired persons and persons with print disabilities and the general population. This, in turn, promotes social inclusion, education, and economic empowerment for visually impaired persons and persons with print disabilities.

- The Marrakesh Treaty also provides a framework for international cooperation and collaboration in the field of intellectual property and disability rights. The treaty establishes the World Intellectual Property Organization (WIPO) as the depositary of the treaty, and provides for the exchange of information and best practices among member countries. This co-operation and collaboration facilitate the effective implementation of the treaty and promote the protection of the rights of visually impaired persons and persons with print disabilities worldwide.

- In addition, the Marrakesh Treaty is a significant step forward in the development of international intellectual property law. The treaty builds on the foundations established by earlier treaties, such as the Berne Convention and the WIPO Copyright Treaty, and provides a more comprehensive and up-to-date framework for the protection of the rights of visually impaired persons and persons with print disabilities. The treaty also reflects the changing needs of society, including the growing recognition of the importance of accessibility and inclusivity in the digital age.

- In conclusion, the Marrakesh Treaty is a groundbreaking international treaty that provides a framework for the protection of visually impaired persons and persons

with print disabilities. By promoting equal access to information and knowledge, the treaty helps to bridge the gap in access to information and knowledge that exists between visually impaired persons and persons with print disabilities and the general population. The treaty also provides a framework for international cooperation and collaboration in the field of intellectual property and disability rights, and is a significant step forward in the development of international intellectual property law.

5.9 TRIPS Agreement

- The TRIPS Agreement is a comprehensive international treaty that provides a framework for the protection of intellectual property rights, including patents, trademarks, copyrights, and related rights. Signed in 1994, the TRIPS Agreement has 164 member countries, making it one of the most widely adopted international treaties in the field of intellectual property. The agreement establishes the principle of national treatment, which requires member countries to treat foreign intellectual property owners in the same way as domestic intellectual property owners.

- The TRIPS Agreement sets out a minimum standard of protection for intellectual property rights, which member countries must implement in their domestic laws. The agreement covers a wide range of intellectual property rights, including patents, trademarks, copyrights, and related rights, such as rights in phonograms and broadcasts. The agreement also establishes rules for the enforcement of intellectual property rights, including provisions on civil and administrative procedures, border measures, and criminal penalties.

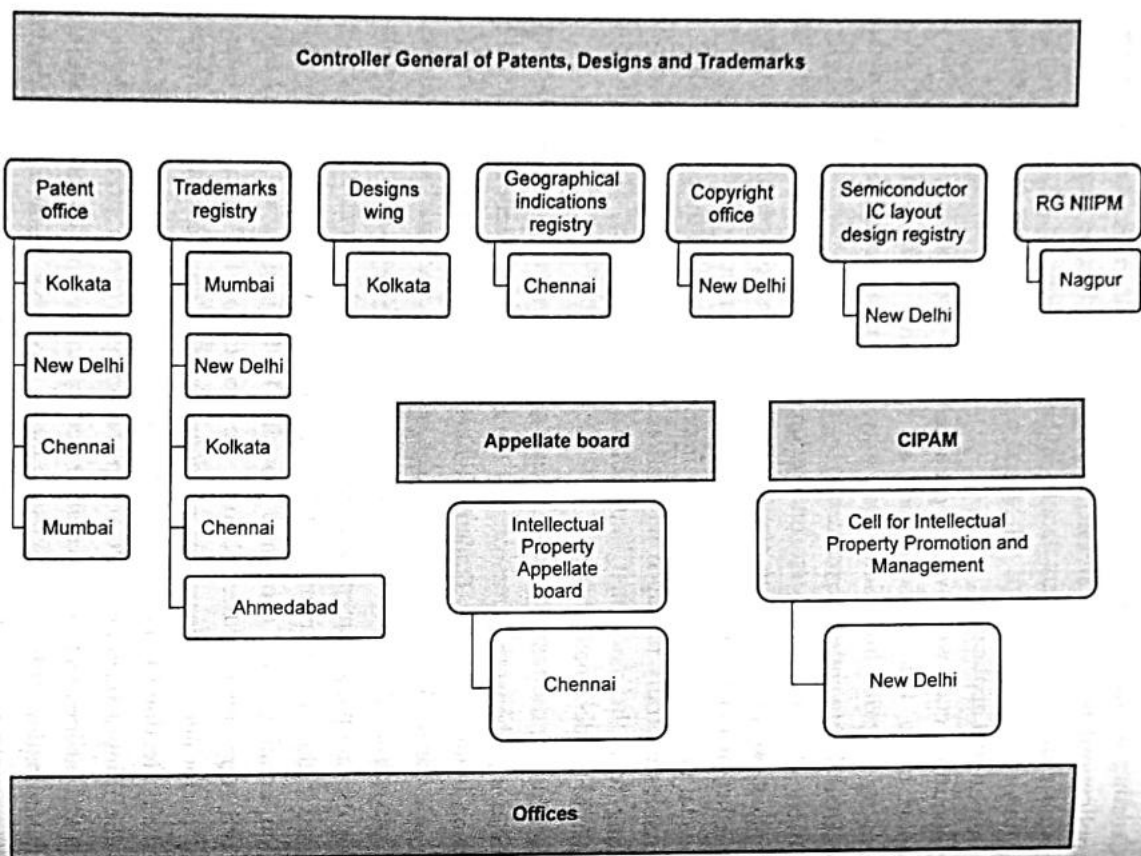
- One of the key benefits of the TRIPS Agreement is that it provides a high level of protection for intellectual property rights, which is essential for promoting innovation, creativity, and economic growth. By establishing a minimum standard of protection for intellectual property rights, the agreement ensures that member countries provide a consistent and predictable level of protection for intellectual property rights. This, in turn, promotes trade and investment, as businesses and individuals are more likely to invest in research and development, and to trade in goods and services that rely on intellectual property rights.

- The TRIPS Agreement also provides a framework for international cooperation and collaboration in the field of intellectual property. The agreement establishes the World Trade Organization (WTO) as the forum for the administration of the agreement, and provides for the exchange of information and best practices among member countries. This cooperation and collaboration facilitate the effective implementation of the agreement and promote the protection of intellectual property rights worldwide.
- In addition, the TRIPS Agreement has undergone several revisions and updates since its adoption in 1994. The most significant revision was made in 2005, which added a new article to the agreement, Article 31bis, which provides for the issuance of compulsory licenses for the production and export of pharmaceutical products to address public health crises in developing countries. The agreement has also been supplemented by several additional agreements, including the WIPO Copyright Treaty and the WIPO Performances and Phonograms Treaty, which provide additional protection for copyrights and related rights in the digital environment.
- Intellectual property rights are protected by the broad international treaty known as the TRIPS Agreement. By establishing a minimum standard of protection for intellectual property rights, the agreement promotes innovation, creativity, and economic growth, and provides a consistent and predictable level of protection for intellectual property rights. The agreement also provides a framework for international cooperation and collaboration in the field of intellectual property, and has undergone several revisions and updates to reflect changing needs and circumstances.
- Except for regional patent systems like the European, Eurasian, and African patent systems, the Harare Protocol system for the African Regional Industrial Property Organization (ARIPO), and the African Intellectual Property Organization (OAPI) system, the national patent system necessitates the filing of separate application for patents for each country for which patent protection is sought. You can claim the priority of an earlier application via the standard Paris Convention procedure for applications filed later in other nations, but they must be filed within two months of the previous application's filing date.

- The PCT accomplishes this goal by :
 - Creating an international system that allows an application (the international application) to be filed in one language with effect in each of the PCT-party countries that the applicant details in the application;
 - Allowing a single patent office, the receiving office, to formally examine the international application;
 - Submitting each worldwide application to an international search that yields a report citing the pertinent prior art (primarily published patent documents relating to prior inventions) that may need to be considered in determining whether the invention is patentable;
 - Offers the option of an international initial review of the international application, providing the applicant and later the offices that must determine whether or not to grant a patent a report with a recommendation as to whether the claimed invention fulfills likely international criteria for patentability.
 - Enables centrally managed international publication of worldwide applications along with the associated international pursuit reports, along with providing them to the designated offices.

In conclusion, the treaties, conventions, and agreements discussed in this chapter provide a comprehensive framework for the protection of intellectual property rights (IPRs) worldwide. From the Trademark Law Treaty and Patent Law Treaty, which simplify and harmonize the procedures for registering trademarks and patents, to the Berne Convention, Rome Convention, and Geneva Convention, which establish the principles of national treatment and minimum standards of protection for copyrights and related rights, these international agreements play a crucial role in promoting innovation, creativity, and economic growth. The Beijing Treaty, Marrakesh Treaty, and TRIPS Agreement further reinforce the protection of IPRs, with a focus on the rights of performers, producers of phonograms, and broadcasting organizations, as well as the protection of visually impaired persons and persons with print disabilities. Finally, the filing procedure of PCT applications provides a streamlined process for inventors and businesses to seek patent protection in multiple countries, facilitating the global dissemination of innovative technologies. Together, these treaties, conventions, and agreements form a robust framework for the protection of IPRs, promoting a balanced and equitable international intellectual property system that supports creativity, innovation, and economic development.

5.10 Filing Procedure of PCT Application



Physical filing at patent office :

Mode of Filing :

- By post / registered post / speed post with DD Physical filing at the office counter
- Mode of FEE Payment at counter :

- Cash
- Demand Draft
- UPI (BHIM)
- A duly filled in Application Form 1 (Induplicate)
- Information regarding foreign filing :

- Form - 3 (Induplicate) - Proof of right to apply (if the inventor is not applicant) - Prescribed Fees as per First Schedule (in cash/Demand draft/BHIM) - Patent Specification (PS or CS),
- Form - 2 (Induplicate) - Declaration as to inventor ship,
- Form 5 (Duplicate) - Abstract (About 150 words) - Drawings - if required. (Duplicate) - Power of authority - if applicable. (Single copy) Documents required to file application :

FILING REQUIREMENTS :

- FORM - 1 : APPLICATION FORM
- FORM - 2 : PROVISIONAL OR COMPLETE SPECIFICATION
- FORM - 3 : STATEMENT OF FOREIGN FILING
- FORM - 18 : REQUEST FOR EXAMINATION
- FORM - 5 : DECLARATION AS TO INVENTORSHIP (IF REQ.)
- FORM - 9 : REQUEST FOR EARLY PUBLICATION (IF REQ.)
- FORM - 26 : POWER OF ATTORNEY ON STAMP PAPER (IF REQ.) - PROOF OF RIGHT TO APPLY (PARAGRAPH 9 OF FORM 1) - CERTIFIED COPY OF CONVENTION APPLICATION, IF REQ. OTHER DOCUMENTS IF REQUIRED
- FORM - 4 : REQUEST FOR EXTENSION OF TIME

FORM-6 : CHANGE IN APPLICANT
 FORM-7 : NOTICE OF OPPOSITION (POST GRANT)
 FORM-8 : MENTIONING THE NAME OF THE INVENTOR
 FORM-10 : AMENDMENT OF PATENT (GRANTED TO DECEASED)
 FORM-13 : AMENDMENT OF THE APPLICATION/SPECIFICATION
 FORM-15 : RESTORATION OF PATENT
 FORM-22 : REGISTRATION OF PATENT AGENT
 FORM-25 : PERMISSION FOR MAKING PATENT APPLICATION OUTSIDE INDIA.

Form 1 THE PATENTS ACT 1970 (39 OF 1970) and The Patents Rules, 2003 APPLICATION FOR GRANT OF PATENT (See section 7, 54 and 135 and rule 20(1))				(FOR OFFICE USE ONLY)			
1. APPLICANT		Application No. :		Filing Date :		Amount of Fee Paid :	
Name		Nationality		Address		CBR No. : Signature :	
2. INVENTOR(S)		Nationality		Address			
3. TITLE OF THE INVENTION							
4. ADDRESS FOR CORRESPONDENCE OF APPLICANT / AUTHORIZED PATENT AGENT IN INDIA				Telephone No. : Fax No. : Mobile No. : E-mail :			
5. PRIORITY PARTICULARS OF THE APPLICATION(S) FILED IN CONVENTION COUNTRY							
Country	Application Number	Filing Date	Name of the Applicant	Time of the invention			
6. PARTICULARS FOR FILING PATENT COOPERATION TREATY (PCT) NATIONAL PHASE							
9. DECLARATIONS :							
(i) Declaration by the Inventor(s) We, the above named inventor(s) are the true and first inventor(s) for this invention and declare that the applicant(s) herein is our assignee. (a) Date (b) Signature(s) (c) Name(s)							

(ii) Declaration by the applicant(s) in the convention country
 I / We, the applicant(s) in the convention country declare that the applicant(s) herein is our assignee
 (a) Date
 (b) Signature(s) N.A.
 (c) Name(s) of the signatory

(iii) Declaration by the applicant(s) :
 I / We, the applicant(s) hereby declare(s) that :

- o We are in possession of the above mentioned invention.
- o The provisional / complete specification relating to the invention is filed with this application.
- o The invention as disclosed in the specification uses the biological material from India and the necessary permission from the competent authority shall be submitted by me / us before the grant of patent to me / us.
- o There is no lawful ground of objection to the grant of the patent to me / us.
- o I am / We are the assignee or legal representative of true and first inventors.
- o The application or each of the applications, particulars of which are given in Para-5 was first application in convention country / countries in respect of my/our invention.
- o I / We claim the priority from the above mentioned application(s) filed in convention country / countries and state that no application for protection in respect of the invention had been made in a convention country before that date by me / us or by any person from which I / We derive the title.
- o My / our application in India is based on international application under Patent Cooperation Treaty (PCT) as mentioned in Para-6.
- o The application is divided out of my / our application particulars of which are given in Para-7 and pray that this application may be treated as deemed to have been filed on _____ under sec. 16 of the Act
- o The said invention is an improvement in or modification of the invention particulars of which are given in Para-8.

10. Following are the attachments with the application :

- (a) Complete specification.
- (b) Complete specification (in confirmation with the international application) / as amended before the international Preliminary Examination Authority (IDEA), as applicable (2 copies). No. of pages _____ No. of claims _____
- (c) Drawing (in conformation with the international application) / as amended before the international Preliminary Examination Authority (IPEA), as applicable (2 copies). No. of sheets _____
- (a) Priority documents
- (b) Translation of priority document / Specification / International Search Report
- (c) Statement and undertaking on Form 3
- (d) Power of Authority
- (e) Declaration of inventorship on Form 5
- (f) Sequence listing in electronic form (floppy disc)
- (g) _____

Fee Rs. _____ in Cash / Cheque / Bank Draft bearing no. _____
 Date _____ On _____ Bank _____
 I / We hereby declare that to the best of my / our knowledge, information and belief the fact and matters stated herein are correct and I / We request that a patent may be granted to me / us for the said invention.
 Dated this _____ day of September 2005.
 Signature : _____
 Name : _____

FORM 2 THE PATENTS ACT, 1970 (39 of 1970) PROVISIONAL / COMPLETE SPECIFICATION (See section 10 and rule 13)	
1. TITLE OF THE INVENTION	
2. APPLICANT(S)	
(a) NAME	
(b) NATIONALITY	
(c) ADDRESS	
3. PREAMBLE OF THE DESCRIPTION	
PROVISIONAL The following specification describes invention	COMPLETE The following specification particularly describes the invention and the manner in which it is to be performed
4. DESCRIPTION (Description shall start from next page)	
5. CLAIMS (not applicable for provisional specification. Claims should start with the preamble - "I / We claim" on separate page)	
6. DATE AND SIGNATURE (to be given on the last page of specification)	
7. ABSTRACT OF THE INVENTION (to be given along with complete specification on the separate page)	

FORM 3 THE PATENT ACT, 1970 (39 OF 1970) and The Patents Rules, 2003 STATEMENT AND UNDERTAKING UNDER SECTION 8 (See section 8, rule 12)					
We hereby declare					
(i) that / We who have made this application No. _____		Dated _____ alone, made for the same / substantially same invention, application(s) for patent in the other countries, the particulars of which are given below :			
Name of the country	Date of Application	Application No.	Status of the application	Date of publication	Date of grant
(ii) not applicable.					
(iii) that the rights in the application(s) have been assigned to us and that We undertake that upto the date of grant of the patent, by the Controller. We would keep him informed in writing the details regarding corresponding applications for patents filed outside India within three months from the date of filing of such application.					
Dated this _____ day of September 2005					
For _____					
The Controller of Patent		Signature _____			
The Patent Office, Mumbai					

Form 5 THE PATENT ACT, 1970 (39 OF 1970) and The Patents Rules, 2003 DECLARATION AS TO INVENTORSHIP [See section 10(6) and rule 13(6)]	
1. NAME OF APPLICANT(S)	
hereby declare that the true and first inventor(s) of the invention disclosed in the complete specification filed in pursuance of my / our application numbered _____ filed on _____ are _____	
2. INVENTOR(S)	
a. Name : _____ b. Address : _____ c. Nationality : _____	
Dated this _____ Signature : _____	
3. DECLARATION TO BE GIVEN WHEN THE APPLICATION IN INDIA IS FILED BY THE APPLICANT(S) IN THE CONVENTION COUNTRY :	
Dated this 19 th day of April 2005. Signature : _____	
To, The Controller of Patent The Patent Office, at Mumbai	

5.11 Multiple Choice Questions

Q.1 What is the primary objective of the Trademark Law Treaty (TLT) ?

- ☐ a To establish a uniform trademark law worldwide
- ☐ b To simplify and standardize trademark registration procedures
- ☐ c To provide a framework for resolving trademark disputes
- ☐ d To promote international cooperation in trademark protection

Q.2 Which treaty provides a framework for the protection of audiovisual performances ?

- | | |
|--|--|
| ☐ a Rome convention | ☐ b Geneva convention |
| ☐ c Beijing treaty | ☐ d Marrakesh treaty |